

ENTITLED: “AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM COUNTY LI LIGHT INDUSTRIAL TO LI LIGHT INDUSTRIAL FOR A PORTION OF TRACT 1, H AND B TRACTS, CHEYENNE WYOMING, TO BE KNOWN AS HEIDUCK ADDITION (LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF INTERSTATE 80 AND SOUTHWEST DRIVE).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on August 3, 2015, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of Tract 1, H and B Tracts, Cheyenne Wyoming, to be known as Heiduck Addition, is hereby changed to LI Light Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication and upon the official filing of the affiliated **Heiduck Addition**, final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

3RD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Heiduck Addition

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00367

SUBDIVISION CODE: HIDK

PREPARED BY: Josh Tetzlaff

MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Development Department recommends approval of the zone change request from County LI Light Industrial to LI Light Industrial for properties to be known as Heiduck Addition.

PLANNING COMMISSION UPDATE (8/3/15): At its regular meeting on August 3, 2015, the Planning Commission voted to recommend approval of the Heiduck Addition zone change, advancing it to the Governing Body.

CITY COUNCIL RECOMMENDATION: The Development Department recommends approval of the zone change request from County LI Light Industrial to LI Light Industrial for properties to be known as Heiduck Addition.

STAFF REPORT

Heiduck Addition

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00367
PREPARED BY: Josh Tetzlaff
MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

SUBDIVISION CODE: HIDK

OWNER: Donald F. Heiduck 307.633.4750
5631 White Bluff
Cheyenne, WY 82009
AGENT: Casey Palma 307.634.7273
Steil Surveying Services, LLC
1102 W. 19th Street
Cheyenne, WY 82001

PROJECT: Heiduck Addition Zone Change

WORK DESCRIPTIONS: Zone change from County LI to LI

LOCATION:

1. Legal Description: a replat of a portion of Tract 1, H and B Tracts, Cheyenne, Laramie County, Wyoming
2. Location: the southeast corner of the intersection of Interstate 80 and Southwest Drive
3. Address: N/A

SIZE: Total site: 22.38 acres

CURRENT ZONING: County LI Light Industrial

PROPOSED ZONING: LI Light Industrial

EXISTING LAND USE: Undeveloped/Agricultural

PROPOSED LAND USE: Not disclosed

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Interstate ROW	N/A	County
South	Undeveloped	County MU	County
East	Railroad ROW	County LI	County
West	Undeveloped	PUD	City

EXECUTIVE SUMMARY:

This zone change application is for a recently annexed property to change from County LI Light Industrial to LI Light Industrial. This zone change was submitted with an expedited preliminary plat application. As stated, the property was recently annexed by the Governing Body and this zone change is required to give the property a City zone district prior to any development.

PlanCheyenne has designated these two parcels as Mixed-Use Residential, which is designed for residential uses as well as commercial and light trade mixed throughout. The proposed zone district of LI would be able to fit into the Mixed-Use Residential land use, as LI has some restrictions on it that HI Heavy Industrial does not. With the property currently being zone County LI, a change to LI would create continuity through the annexation.

Due to meeting the review criteria of section 2.2.1.d of the Cheyenne Unified Development Code (UDC), staff recommends approval of the zone change, advancing it to the Governing Body.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Mixed-Use Residential is the designation given to the subject area within ShapeCheyenne, which has the future land use map within PlanCheyenne. Mixed-Use Residential areas are intended for a variety of housing options, diversifying both density and type of housing units. As a secondary use, Mixed-Use Residential also should include a mix of retail, offices, and light trade that are related to the neighborhood. The LI Light Industrial zone district can work within the Mixed-Use Residential area. LI Light Industrial has more restrictions on the uses allowed compared to HI Heavy Industrial. The restrictions include not allowing some uses as well as certain uses requiring more conditional use permits.

SURROUNDING AREA - The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The existing zoning is County LI Light Industrial. A designation of LI Light Industrial would maintain this consistency. As previously discussed, the LI Light Industrial zone district is able to fit within the context of the Mixed-Use Residential future land use designation and is therefore compatible with the comprehensive plan.

ZONING: BASIC STANDARDS & USES - The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

Since the property was recently annexed into the City, it must be given a City zone district before it can be developed. Currently, the property is zone County LI Light industrial. Under the proposed LI Light Industrial zone district, the property would be able to be developed according to the standards of that district as laid out by the Cheyenne UDC.

STREETS & OPEN SPACE - The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

The property should be able to be developed according to the standards in Article 4 of the UDC. No new right-of-way is being proposed with this project. At the time of development, any accesses or internal streets would be subject to the requirements of Article 4 and reviewed with the site plan. Open Space will be further evaluated at the time of Site Plan Review, at which time any requirements or exceptions thereto will be determined.

ZONING: INTENT, APPLICABILITY & DESIGN OBJECTIVES - The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The LI Light Industrial zone district is intended for controlled manufacturing or intensive employment that may have a secondary commercial use. This property would be able to meet that intent within the context of a Mixed-Use Residential land use in the area. The property can also meet the applicability by being located on a large piece of land that can accommodate the requirements for industrial uses. The parcel should be able to achieve the design objectives for development within the LI Light Industrial zone.

ZONING: FUTURE DEVELOPMENT - The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Being located on a large parcel, this area should be able to meet the standards of the district when it is sold for development. As of the submittal of the application, there was no planned development. The annexation, platting, and zone change have all been happening to prepare the property for sale and development.

Reviewing Agencies w/ Comments:

- City Engineer (Nathan Beauheim) **(FYI)**
 - o Industrial development on this parcel may be problematic due to the existing truck prohibition on Southwest Dr. between W. 5th St. and W. College Dr. In general, any land use that generates high traffic volumes is problematic due to the delays at the Southwest Dr./UPRR crossing to the north. We have documented instances of the crossing being blocked for more than 8 hours a day.
- Development Department (Josh Tetzlaff) **(Correct Prior to Signing)**
 - o Within the title block, please change the word "situate" to "situated".
 - o Per the County Assessor's comment on the plat, please update the title block legal.

Reviewing Agencies w/o Comments:

- Development Department (Brandon Cammarata)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Nancy Olson)
- Urban Planning (Matt Ashby)
- WyDOT (Randy Griesbach)

Reviewing Agencies not Responding:

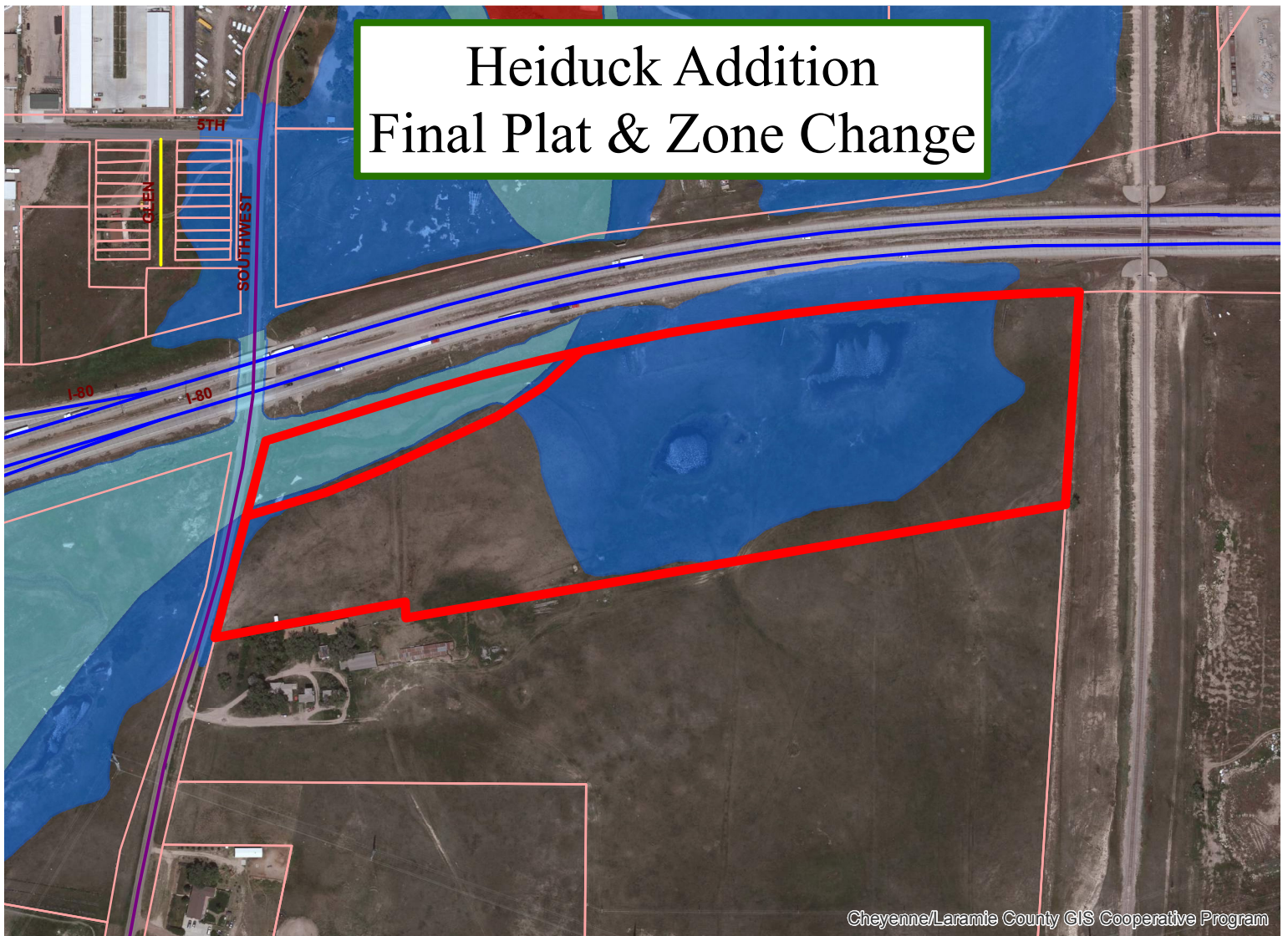
- None

Other Comments Received:

- None

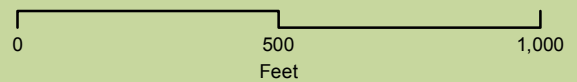
cc: Owner
Agent/Applicant
File

Heiduck Addition Final Plat & Zone Change

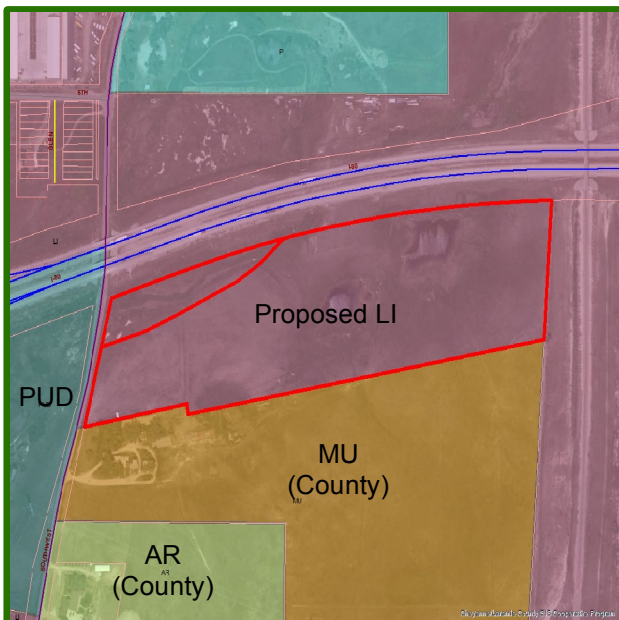


Cheyenne/Laramie County GIS Cooperative Program

Applicant: Donald Fred Heiduck
Agent: Casey Palma, Steil Surveying Services
Application Numbers
Final Plat: UDC-15-00252
Zone Change: UDC-15-00367

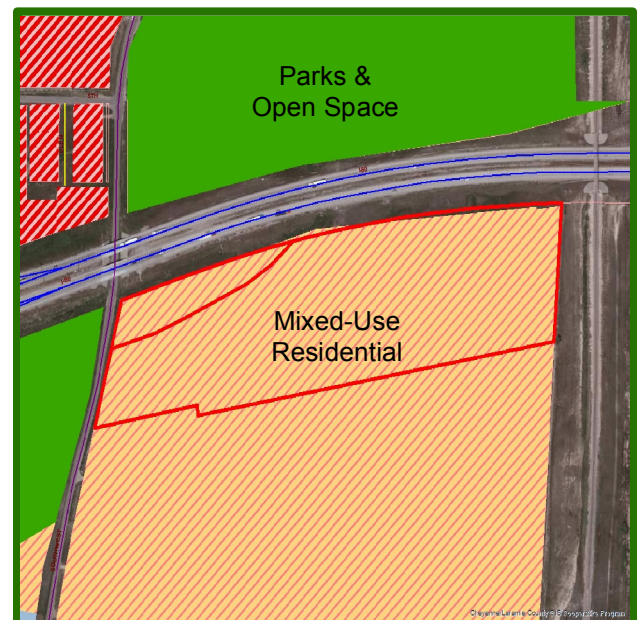


Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	16° 27' 00"	5455.39'	N81° 17' 58"E	1560.91'	1566.28'
C1(R)	16° 26' 54"	5455.39'	N81° 17' 46"E	1560.75'	1566.12'

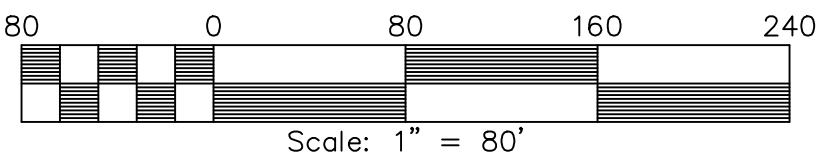
NEXTMEDIA NORTHERN COLORADO INC
6312 S FIDDLERS GREEN DR STE. 200E
GREENWOOD VILLAGE, CO 80111
LI (COUNTY) - COMMERCIAL

UNPLATTED

INTERSTATE 80 (R/W VARIES)

PROPERTY AREA
±22.38 ACRES

RAILROAD RIGHT-OF-WAY
(±400' R/W)



LAND DESCRIPTION

A portion of Tract 1, H and B Tracts, more particularly described as follows:
Beginning at a point being the northeast corner of said Tract 1, H and B Tracts, Laramie County, Wyoming, monumented with a 3" brass cap WYDOT right-of-way marker; thence S.03°38'03"W., along the east line of said Tract 1, a distance of 483.00 feet; thence S.80°21'10"W., a distance of 1533.88 feet; thence N.00°06'34"E., a distance of 37.81 feet; thence S.79°29'47"W., a distance of 444.72 feet to a point on the west line of said Tract 1, monumented with a 1½" survey cap stamped "DMH PE & LS 558"; thence N.14°33'35"E., along said west line, a distance of 464.54 feet to the northwest corner of said Tract 1, monumented with a 3" brass cap WYDOT right-of-way marker; thence N.73°12'59"E., along the north line of said Tract 1, a distance of 334.52 feet to a 3" brass cap WYDOT right-of-way marker; thence continuing along said north line, along a curve, concave to the southeast, with a radius of 5455.39 feet, curve delta 16°27'00", arc length of 1566.28 feet and chord bearing of N.81°17'58"E., a distance of 1560.91 feet to the Point Of Beginning.
Said lands containing 22.38 acres more or less.

ZONING

EXISTING ZONING: LI-LIGHT INDUSTRIAL (COUNTY)
PROPOSED ZONING: LI-LIGHT INDUSTRIAL

LEGEND

- SET 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾" x 24" REBAR
- FOUND ALUMINUM CAP STAMPED PELS 558"
- ⊙ FOUND IRON ROD
- RIGHT OF WAY MONUMENT
- (M) DENOTES MEASURED DATA THIS SURVEY
- (R) DENOTES RECORD PLAT DATA
- DENOTES FEMA 100-YR SFHA

NOTES

- BASIS OF BEARINGS - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "EAST" & "COLLEGE".
- A PORTION OF PROPOSED TRACT 2 OF THE SUBJECT PROPERTY FALLS WITHIN FEMA 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.R.M. PANEL #56021C1352F, DATED JANUARY 17, 2007.
- ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¾"x24" REBAR.
- WATER AND SEWER SERVICE TO BE PROVIDED BY CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES (BOPU) AND/OR SOUTH CHEYENNE WATER AND SEWER DISTRICT (SCWSD).
- A PORTION OF THE SUBJECT PROPERTY IS DESIGNATED AS FALLING WITHIN THE CITY OF CHEYENNE / LARAMIE COUNTY 100-YEAR FLOODPLAIN.
- DRAINAGE EASEMENT (UNDEFINED WIDTH) PLATTED WITH H AND B TRACTS TO BE CENTERLINE OF IRRIGATION TROUGH FOR DAIRY FARM / AGRICULTURAL PRODUCTION. OWNER HEREBY VACATES THOSE PORTIONS FALLING WITHIN THE BOUNDARY OF THIS PLAT.
- TRACT 2 IS DESIGNATED AND RESERVED AS A STORMWATER DETENTION AND CONVEYANCE EASEMENT AND IS TO BE DEDICATED TO THE CITY OF CHEYENNE THIS PLAT.

ENGINEER:
TBD

OWNER:
HEIDUCK, DONALD F
521 SOUTHWEST DR
CHEYENNE, WY 82007
(307) 633-4750

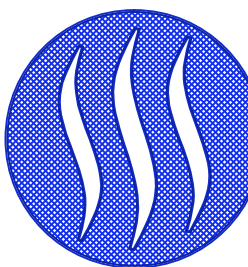
SURVEYOR:
STEIL SURVEYING SERVICES, LLC.
1102 WEST 19th STREET
CHEYENNE, WY 82001
307-634-7273

DEVELOPER:
TBD

ZONE CHANGE MAP FOR HEIDUCK ADDITION

A REPLAT OF A PORTION
OF TRACT 1, H AND B TRACTS
SITUATE IN THE N1/2 OF SECTION 12,
T.13N., R.67W. OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING.

PREPARED FEBRUARY, 2015



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PROFESSIONAL LAND SURVEYORS
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www.SteilSurvey.com • info@SteilSurvey.com